

Election Constituency Delimitation Act, 2017

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Election Constituency Determination Act, 2073

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Preamble: Whereas it is desirable to make necessary provisions relating to the determination of election constituencies for the purpose of electing members of the House of Representatives and members of the Provincial Assembly,

The Legislature-Parliament, pursuant to Sub-article (1) of Article 296 of the Constitution of Nepal, has enacted this Act. 1. Short Title and Commencement: (1) This Act may be called the "Election Constituency Determination Act, 2073."

(2) This Act shall come into force immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act,-

(a) "Commission" means the Election Constituency Determination Commission constituted pursuant to Sub-article (1) of Article 286 of the Constitution.

(b) "House of Representatives" means the House of Representatives constituted pursuant to Article 84 of the Constitution.

(c) "Provincial Assembly" means the Provincial Assembly constituted pursuant to Article 176 of the Constitution.

(d) "Constitution" means the Constitution of Nepal. 3. Determination of Constituency for Election of Member of House of Representatives: (1) The Commission shall, while determining constituencies for the election of members of the House of Representatives, determine one hundred sixty-five election constituencies on the basis of population, geographical suitability, and specificity, pursuant to Clause (a) of Sub-article (1) of Article 84 of the Constitution.

(2) The Commission shall, pursuant to Sub-section (1), determine election constituencies in such a manner that each district has at least one election constituency.

(3) If, based on population pursuant to this Section, more than one election constituency is to be determined in a district, the Commission shall, taking into account the aspects mentioned in Sub-article (6) of Article 286 of the Constitution, determine them in such a manner that the ratio of population of all election constituencies within such district is as equal as possible. Provided that no election constituency shall be determined so as to include the area of one district within another district.

(4) While determining election constituencies pursuant to Sub-section (3), no ward of a municipality or rural municipality shall be determined so as to fall within more than one election constituency. 4.

Determination of Constituency for Election of Member of Provincial Assembly: (1) The Commission shall,

pursuant to Clause (a) of Sub-article (1) of Article 176 of the Constitution, determine election constituencies for the election of members of the Provincial Assembly in such a manner that the number of such constituencies equals twice the number of election constituencies determined for the election of members of the House of Representatives in the relevant Province pursuant to Section 3. (2) The Commission shall, pursuant to Sub-section (1), determine election constituencies in such a manner that each district has at least two election constituencies. (3) If, based on population pursuant to this Section, more than one election constituency is to be determined in a district, the Commission shall, taking into account the matters mentioned in Sub-article (6) of Article 286 of the Constitution, determine them in such a manner that the ratio of population of all election constituencies within such district is as equal as possible. (4) Notwithstanding anything contained in Sub-section (3), election constituencies shall not be determined in the following manner:- (a) so as to include the area of one district within another district, (b) so as to include one election constituency of the House of Representatives with another election constituency, or (c) so as to cause any ward of a municipality or rural municipality to fall within more than one election constituency. 5. Population to be the Primary and Geography the Secondary Basis: (1) While determining election constituencies pursuant to this Act, population shall be taken as the primary basis and geography as the secondary basis. (2) While taking population as the basis for the determination of election constituencies pursuant to Sub-section (1), the population of each district as ascertained from the immediately preceding national census shall be the basis. 6. Consultation: (1) The Commission may, while determining election constituencies pursuant to this Act, consult with local residents, experts on relevant subjects, and political parties. (2) The Commission may, for the purposes of Sub-section (1), summon any person to the Commission and consult as necessary. (3) No question shall be raised in any court concerning whether the Commission has or has not consulted anyone pursuant to this Section. 7. Financial Arrangement: The Ministry of Finance shall make available the funds required for the work of the Commission. 8. Coordination: The Commission shall, while performing its functions, coordinate with the concerned bodies. 9. Delegation of Power: The Commission may, as required, delegate any of its powers to the Chairperson, member, Member-Secretary, or any officer-level employee of the Government of Nepal. Provided that the power relating to determining election constituencies shall not be delegated. 10.

Obligation to Render Assistance: If the Commission requests assistance in the course of performing its functions, all concerned shall provide necessary assistance to the Commission. 11. Submission of Report: (1) The Commission shall, after completing its work relating to the determination of election constituencies, submit its report thereon to the Government of Nepal. (2) The Government of Nepal shall, within fifteen days, send the report submitted by the Commission pursuant to Sub-section (1) to the Election Commission. 12. Publication of Notice in Nepal Gazette: The Election Commission shall publish a notice in the Nepal Gazette regarding the determination of election constituencies pursuant to this Act. 13. Liaison Ministry: The Commission shall, when liaising with the Government of Nepal, do so through the Office of the Prime Minister and Council of Ministers. 14. Documents of the Commission: After the completion of the proceedings of the Commission, the Member-Secretary of the Commission shall submit the records and other documents of the Commission to the Election Commission.